MERGER AGREEMENT 4 nfr

==========
AGREEMENT AND PLAN OF MERGER
==========

Dated: June 1, 2026

BY AND BETWEEN:
Phoenix Merger Sub Inc. ("Merger Sub")
and
Apex Technologies Inc. ("Company")

(Each a "Party" and collectively the "Parties")

WHEREAS, the Boards of Directors of each Party have unanimously approved this Agreement; and

WHEREAS, the Parties intend this transaction to qualify as a tax-free reorganization under Section 368(a) of the Code.

NOW, THEREFORE, in consideration of the mutual covenants and agreements set forth herein, the Parties agree as follows:

ARTICLE I: DEFINITIONS

Capitalized terms shall have the meanings set forth in this Article I or in the attached Exhibit A (Definitional Glossary).

"Affiliate" means any Person controlling, controlled by, or under common control with a Party.

"Business Day" means any day other than Saturday, Sunday, or federal holiday.

"Closing" means the consummation of the Merger.

"Closing Date" means the date of the Closing, which shall occur within three Business Days after satisfaction of conditions.

"Code" means the Internal Revenue Code of 1986, as amended.

"Confidentiality Agreement" means the agreement dated January 15, 2026.

"Disclosure Schedule" means the schedule delivered by Company to Purchaser concurrently herewith.

"Governmental Entity" means any federal, state, local, foreign, or international governmental authority.

"Knowledge of Company" or "Company's Knowledge" means the actual knowledge after reasonable inquiry of the individuals listed on Schedule 1.1(a).

"Knowledge of Purchaser" means the actual knowledge after reasonable inquiry of the individuals listed on Schedule 1.1(b).

"Lien" means any mortgage, pledge, lien, security interest, charge, claim, easement, or encumbrance.

"Material Adverse Effect" means any change, event, or effect that, individually or in the aggregate, has a material adverse effect on the business, assets, financial condition, or results of operations of Company; provided, however, that "Material Adverse Effect" shall not include any change or effect arising from:
(i) general economic or political conditions;
(ii) conditions affecting the industry generally;
(iii) changes in law or GAAP;
(iv) acts of war, terrorism, or natural disasters;
(v) failure to meet projections (so long as not caused by underlying adverse change);
(vi) announcement of this Agreement; or
(vii) actions taken at Purchaser's request.

"Permitted Liens" means (i) liens for taxes not yet due and payable; (ii) statutory liens of carriers, warehousemen, mechanics, and materialmen; (iii) zoning, building codes, and land use regulations; (iv) easements, covenants, rights-of-way that do not materially impair use; (v) non-exclusive intellectual property licenses; and (vi) purchase money security interests.

"Person" means any individual, corporation, partnership, limited liability company, trust, or other entity.

"Purchaser Material Adverse Effect" means any change that would prevent Purchaser from consummating the Merger.

"Subsidiary" means any entity controlled, directly or indirectly, by a Party.

"Willful Breach" means a deliberate act or omission with knowledge it constitutes a breach.

ARTICLE II: THE MERGER

2.1 The Merger. Upon the terms and subject to the conditions of this Agreement, at the Effective Time, Merger Sub shall merge with and into Company. Company shall be the Surviving Corporation.

2.2 Effective Time. The Merger shall become effective upon filing of Certificate of Merger with the Delaware Secretary of State.

2.3 Effects of the Merger. At the Effective Time, all assets, liabilities, and property of Merger Sub shall vest in Surviving Corporation.

ARTICLE III: CONVERSION OF SHARES

3.1 Conversion of Company Common Stock. Each share of Company Common Stock issued and outstanding immediately prior to the Effective Time shall be converted into the right to receive the Merger Consideration.

3.2 Treatment of Options. Each outstanding option to purchase Company Common Stock shall be cancelled and converted into the right to receive the Option Consideration.

3.3 Merger Consideration. The aggregate Merger Consideration shall be $200,000,000 (the "Base Purchase Price"), payable as follows:

(a) Closing Cash: $140,000,000 by wire transfer of immediately available funds.

(b) Escrow Amount: $20,000,000 deposited into escrow account (the "Escrow Account") pursuant to the Escrow Agreement attached as Exhibit B.

(c) Earnout Amount: Up to $40,000,000 payable as described in Article IV.

3.4 Withholding Rights. Purchaser may withhold any taxes required by law.

ARTICLE IV: EARNOUT

4.1 Earnout Consideration. Company's equityholders shall be entitled to receive additional consideration (the "Earnout Amount") based on achievement of the following milestones:

Milestone	Metric	Target	Earnout Payment
Milestone 1	Revenue FY2026	≥ $80,000,000	$15,000,000
Milestone 2	Revenue FY2027	≥ $95,000,000	$15,000,000
Milestone 3	EBITDA FY2027	≥ $20,000,000	$10,000,000

4.2 Calculation. All financial metrics shall be calculated in accordance with GAAP, consistently applied, and audited by a nationally recognized accounting firm. Revenue shall exclude intercompany transactions and one-time non-recurring items. EBITDA means net income plus interest, taxes, depreciation, and amortization.

4.3 Earnout Disputes. Any dispute regarding the Earnout Amount shall be resolved by binding arbitration before an independent accountant from a Big 4 firm mutually selected by the Parties. The arbitrator's decision shall be final and binding, with costs borne by the non-prevailing party.

4.4 Operational Covenants. Purchaser agrees to operate the Surviving Corporation in good faith and not take any actions with the primary purpose of avoiding the Earnout.

ARTICLE V: REPRESENTATIONS AND WARRANTIES OF COMPANY

Company represents and warrants to Purchaser as follows (all subject to Disclosure Schedule):

5.1 Organization and Qualification. Company is duly organized, validly existing, and in good standing under the laws of Delaware. Company is qualified to do business in each jurisdiction where required.

5.2 Certificate of Incorporation and Bylaws. True and complete copies have been provided to Purchaser.

5.3 Capitalization. The authorized capital stock of Company consists of:
- 20,000,000 shares of Common Stock, $0.001 par value

- 5,000,000 shares of Preferred Stock, $0.001 par value

As of the date hereof: 12,000,000 shares of Common are issued and outstanding; 2,000,000 shares of Preferred are issued and outstanding. All shares are validly issued, fully paid, and non-assessable.

5.4 Subsidiaries. Company has no Subsidiaries except those listed on Schedule 5.4.

5.5 Authority; Binding Nature. Company has all requisite power and authority to execute and deliver this Agreement. The Board has approved the Merger. No other corporate proceedings are required. This Agreement is binding and enforceable.

5.6 Non-Contravention. The execution of this Agreement does not: (a) violate Company's organizational documents; (b) conflict with any law or judgment; (c) breach any material contract; or (d) require any consent except those obtained.

5.7 Governmental Approvals. No governmental approval is required except HSR Act clearance and the filings described on Schedule 5.7.

5.8 Financial Statements. Company has delivered audited financial statements for fiscal years 2023, 2024, and 2025 (the "Financial Statements"). The Financial Statements fairly present in all material respects the financial position of Company as of their dates and the results of operations for the periods then ended, in accordance with GAAP. Company maintains internal controls sufficient to provide reasonable assurance regarding the reliability of financial reporting.

5.9 Absence of Certain Changes. Since December 31, 2025, (a) Company has operated in the ordinary course, (b) there has been no Material Adverse Effect, and (c) Company has not taken any action prohibited by Section 6.1.

5.10 Litigation. There is no pending or, to Company's Knowledge, threatened litigation against Company that would reasonably be expected to result in liability exceeding $500,000 individually or $1,000,000 in the aggregate.

5.11 Compliance with Laws. Company is, and has been for the past three years, in compliance with all applicable laws. Company has not received any notice of violation.

5.12 Tax Matters. Company has timely filed all tax returns. All taxes due have been paid. No tax audit is pending. Company is not subject to tax in any jurisdiction where it does not file. Company has withheld all employee taxes.

5.13 Employee Benefits. Schedule 5.13 lists all employee benefit plans. Each plan complies with ERISA and the Code. No plan is a multiemployer or defined benefit pension plan.

5.14 Labor Matters. Company is not a party to any collective bargaining agreement. There are no pending labor strikes or union organizing efforts. Company has complied with all wage and hour laws.

5.15 Environmental Matters. Company is in compliance with all environmental laws. There is no contamination requiring remediation. Company has no asbestos, mold, or hazardous materials.

5.16 Intellectual Property.

(a) Schedule 5.16(a) lists all registered IP owned by Company, including patents, trademarks, copyrights, and domain names.

(b) Company owns or has valid licenses to all IP used in its business.

(c) No third party is infringing Company's IP. Company is not infringing any third-party IP.

(d) Company has taken reasonable measures to protect trade secrets.

(e) All software developed by Company is either open source (with compliance) or proprietary.

5.17 Data Privacy and Security. Company complies with all data privacy laws. Company has a privacy policy. There has been no data breach in the past three years.

5.18 Material Contracts. Schedule 5.18 lists each material contract, including:
(a) Any contract with aggregate payments exceeding $500,000 annually;
(b) Any debt instrument over $1,000,000;
(c) Any non-compete or exclusivity agreement;
(d) Any IP license material to the business;
(e) Any partnership or joint venture;

(f) Any change of control or severance agreement.

All material contracts are valid, binding, and in full force and effect. No party is in default.

5.19 Real Property. Company owns no real property. Leased real property is listed on Schedule 5.19. All leases are valid and in good standing.

5.20 Personal Property. Company has good title to all personal property reflected on the Financial Statements, free and clear of all Liens except Permitted Liens.

5.21 Customers and Suppliers. No single customer accounted for more than 10% of revenue in FY2025. No single supplier accounted for more than 15% of purchases. There is no pending material dispute with any customer or supplier.

5.22 Insurance. Schedule 5.22 lists all insurance policies. All policies are in full force and effect.

5.23 Related Party Transactions. No officer or director has any material interest in any contract with Company except normal compensation.

5.24 Brokers. No broker is entitled to any fee except [Broker Name] (fee disclosed).

5.25 Full Disclosure. No representation contains any untrue statement of material fact or omits any material fact necessary to make the statements not misleading.

5.26 Survival. All representations and warranties in this Article V shall survive the Closing for a period of 18 months (the "General Survival Period"), except (a) representations in Sections 5.3 (Capitalization), 5.5 (Authority), and 5.8 (Financial Statements) shall survive for 6 years; (b) representations in Section 5.12 (Tax Matters) shall survive for the applicable statute of limitations; and (c) representations in Section 5.11 (Compliance with Laws) to the extent relating to anti-corruption or sanctions shall survive for 6 years.

ARTICLE VI: REPRESENTATIONS AND WARRANTIES OF PURCHASER

Purchaser represents and warrants to Company as follows:

6.1 Organization. Purchaser is duly organized, validly existing, and in good standing under Delaware law. Merger Sub was formed solely for the Merger and has no assets or liabilities.

6.2 Authority. Purchaser has full power and authority to execute this Agreement. The Board has approved the Merger. No shareholder vote is required. This Agreement is binding.

6.3 Non-Contravention. Execution does not violate Purchaser's organizational documents or any law.

6.4 Funds. Purchaser has, or will have at Closing, sufficient funds to pay the Merger Consideration.

6.5 Litigation. No litigation is pending that would prevent Closing.

6.6 Brokers. No broker is entitled to any fee.

6.7 Survival. Representations in this Article VI survive Closing for 18 months.

ARTICLE VII: COVENANTS

7.1 Conduct of Business Pending Closing. From the date hereof until the earlier of Closing or termination, Company shall operate in the ordinary course and shall not take any of the following actions without Purchaser's prior written consent:

(a) Issue any shares or options;
(b) Declare any dividend or repurchase any shares;
(c) Acquire or dispose of any material assets (exceeding $500,000);
(d) Incur any debt (excluding trade payables);
(e) Increase compensation of any executive by more than 5%;
(f) Enter into any material contract outside the ordinary course;
(g) Settle any litigation for more than $250,000;
(h) Change accounting methods;
(i) Make any tax election;
(j) Amend organizational documents.

7.2 Access and Information. Company shall provide Purchaser and its representatives reasonable access to properties, books, and records during normal business hours.

7.3 Confidentiality. All information provided shall be governed by the Confidentiality Agreement.

7.4 No Solicitation. Company shall not, and shall cause its representatives not to, solicit, initiate, or encourage any alternative transaction. Company shall promptly notify Purchaser of any unsolicited proposal.

7.5 Regulatory Approvals. Each Party shall use reasonable best efforts to obtain all regulatory approvals, including HSR Act clearance. The Parties shall cooperate and file within 15 Business Days.

7.6 Public Announcements. The Parties shall mutually agree on any press release.

7.7 Employee Matters. Purchaser shall provide employment offers to all Company employees with substantially comparable compensation. For the first 12 months post-Closing, Purchaser shall maintain employee benefits that are no less favorable in the aggregate. Employees shall receive credit for prior service.

7.8 Tax Covenants. The Parties intend the Merger to qualify as a tax-free reorganization. Neither Party shall take any action that would disqualify such treatment.

7.9 Directors' and Officers' Indemnification. Purchaser shall maintain Company's D&O insurance for six years.

7.10 Transition Services Agreement. Purchaser shall provide transition services as set forth in Exhibit C for up to 12 months.

ARTICLE VIII: CLOSING CONDITIONS

8.1 Conditions to Each Party's Obligations. The obligations of each Party to consummate the Merger are subject to the satisfaction of the following conditions:

(a) No law or injunction prohibiting the Merger;

(b) HSR Act waiting period expiration or termination;

(c) Any other governmental approvals listed on Schedule 5.7.

8.2 Conditions to Purchaser's Obligations. The obligations of Purchaser are subject to the satisfaction of the following conditions:

(a) The representations and warranties of Company shall be true and correct in all material respects as of the Closing Date (except for those qualified by materiality, which shall be true and correct in all respects);

(b) Company shall have performed all covenants in all material respects;

(c) No Material Adverse Effect shall have occurred;

(d) Purchaser shall have received a certificate signed by an officer of Company confirming (a), (b), and (c);

(e) Purchaser shall have received resignations of all Company directors;

(f) The key employees listed on Schedule 8.2(f) shall have executed employment agreements;

(g) Purchaser shall have received a legal opinion from Company counsel;

(h) Purchaser shall have received a certificate of good standing for Company;

(i) No litigation shall be pending seeking to enjoin the Merger.

8.3 Conditions to Company's Obligations. The obligations of Company are subject to the satisfaction of the following conditions:

(a) The representations and warranties of Purchaser shall be true and correct in all material respects;

(b) Purchaser shall have performed all covenants in all material respects;

(c) Purchaser shall have delivered the Closing Cash and escrow funds;

(d) Company shall have received a certificate signed by an officer of Purchaser confirming (a) and (b).

ARTICLE IX: INDEMNIFICATION

9.1 Survival of Representations and Warranties. The representations and warranties of the Parties shall survive the Closing for the periods set forth

in Sections 5.26 and 6.7 (the "Survival Period"). Any claim for breach of a representation or warranty must be asserted prior to the expiration of the applicable Survival Period.

9.2 Indemnification by Seller. From and after the Closing, the Seller Indemnitors (defined as the equityholders of Company immediately prior to Closing) shall indemnify Purchaser against any Losses arising out of:

(a) any breach of a representation or warranty of Company;

(b) any breach of a covenant of Company;

(c) any pre-Closing taxes;

(d) any excluded liabilities set forth on Schedule 9.2.

9.3 Indemnification by Purchaser. From and after the Closing, Purchaser shall indemnify the Seller Indemnitors against any Losses arising out of:

(a) any breach of a representation or warranty of Purchaser;

(b) any breach of a covenant of Purchaser;

(c) any post-Closing taxes.

9.4 Indemnification Cap. The aggregate liability of the Seller Indemnitors under this Article IX shall not exceed $30,000,000 (the "Cap"). The Cap shall not apply to claims arising from fraud or Willful Breach.

9.5 Indemnification Basket. The Seller Indemnitors shall not be liable for any Losses until the aggregate amount of all Losses exceeds $500,000 (the "Basket"), after which the Seller Indemnitors shall be liable for the entire amount of Losses (including the Basket amount).

9.6 Escrow. The Escrow Amount shall be held for 18 months and shall be the sole source of recovery for indemnification claims, except that (a) fraud claims may be pursued outside escrow, and (b) claims exceeding the Escrow Amount may be pursued against the Seller Indemnitors directly.

9.7 Exclusive Remedy. Except for claims based on fraud or Willful Breach, and except for claims for specific performance or injunctive relief, the

indemnification provisions of this Article IX shall be the sole and exclusive remedy for any Losses arising out of this Agreement.

9.8 Procedures for Indemnification. A party seeking indemnification (the "Indemnified Party") shall deliver a notice to the indemnifying party (the "Indemnifying Party") describing the claim in reasonable detail. The Indemnifying Party shall have 30 days to object. If the Indemnifying Party does not object, the claim shall be deemed accepted.

9.9 Third-Party Claims. If a third party asserts a claim against an Indemnified Party, the Indemnified Party shall give prompt notice to the Indemnifying Party. The Indemnifying Party may assume the defense of such claim with counsel reasonably acceptable to the Indemnified Party.

9.10 Tax Treatment of Indemnification Payments. All indemnification payments shall be treated as adjustments to the Merger Consideration for tax purposes.

ARTICLE X: TERMINATION

10.1 Termination Rights. This Agreement may be terminated at any time prior to Closing:

(a) By mutual written consent of the Parties;

(b) By either Party if the Closing has not occurred by March 31, 2027 (the "Outside Date"), provided that the terminating Party is not in material breach;

(c) By either Party if a governmental entity issues a final non-appealable order enjoining the Merger;

(d) By Purchaser if Company has breached any representation or covenant, and such breach is not cured within 30 days after notice, and such breach would cause a Closing condition to fail;

(e) By Company if Purchaser has breached any representation or covenant, and such breach is not cured within 30 days after notice, and such breach would cause a Closing condition to fail.

10.2 Effect of Termination. If this Agreement is validly terminated, it shall become void and have no effect, except that (a) the Confidentiality Agreement

and this Section 10.2 survive, and (b) no termination shall relieve any Party of liability for Willful Breach or fraud prior to termination.

10.3 Termination Fee. If this Agreement is terminated by Purchaser pursuant to Section 10.1(d) (Company breach) or by either Party pursuant to Section 10.1(b) (Outside Date) where Company is in material breach, Company shall pay Purchaser a termination fee of $4,000,000. If this Agreement is terminated by Company pursuant to Section 10.1(e) (Purchaser breach) or by either Party pursuant to Section 10.1(b) where Purchaser is in material breach, Purchaser shall pay Company a termination fee of $4,000,000.

ARTICLE XI: GENERAL PROVISIONS

11.1 Entire Agreement. This Agreement (including the Disclosure Schedule, Exhibits, and all certificates and instruments delivered hereunder) constitutes the entire agreement among the Parties with respect to the subject matter hereof and supersedes all prior agreements, understandings, and representations, whether written or oral. No representation, warranty, or inducement not expressly set forth herein shall be binding.

11.2 Amendment. This Agreement may be amended only by a written instrument signed by all Parties.

11.3 Waiver. Any waiver must be in writing and signed by the waiving Party. No waiver of any breach shall constitute a waiver of any other breach.

11.4 Severability. If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall remain in full force and effect. The Parties shall negotiate in good faith to replace any invalid provision with a valid provision that achieves the same economic purpose.

11.5 Assignment. Neither Party may assign this Agreement without the prior written consent of the other Party, except that Purchaser may assign to an Affiliate (provided Purchaser remains liable).

11.6 Third-Party Beneficiaries. This Agreement is for the benefit of the Parties and their successors and permitted assigns. No other person shall have any rights hereunder, except that the Seller Indemnitors shall be third-party beneficiaries of Article IX.

11.7 Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to conflicts of laws principles that would apply the law of any other jurisdiction.

11.8 Dispute Resolution; Jurisdiction.

(a) Any dispute arising out of this Agreement (other than earnout disputes governed by Section 4.3) shall be resolved exclusively by the Court of Chancery of the State of Delaware (or, if that court lacks jurisdiction, the federal courts of the District of Delaware).

(b) Each Party irrevocably submits to the personal jurisdiction of such courts.

(c) The prevailing party in any such dispute shall be entitled to recover its reasonable attorneys' fees and costs.

11.9 WAIVER OF JURY TRIAL. EACH PARTY HEREBY IRREVOCABLY WAIVES ANY RIGHT TO TRIAL BY JURY IN ANY DISPUTE ARISING OUT OF THIS AGREEMENT.

11.10 Specific Performance. The Parties agree that irreparable damage would occur if this Agreement were not performed in accordance with its terms. Accordingly, each Party shall be entitled to specific performance or injunctive relief without the necessity of posting bond.

11.11